

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ZACHARY CROMWELL and RILEY CASSIDY,

SUMMONS

Plaintiffs,

Index No.

-against-

Plaintiffs Select New York County as
Trial Venue Based on Locus of Injury

CITY OF NEW YORK and ROBERT LEE,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 17, 2023

SIM & DEPAOLA LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By: /s/ Samuel C. DePaola

Samuel C. DePaola, Esq.

Attorney for Plaintiffs

TO: CITY OF NEW YORK

Via Corporation Counsel of The City of New York
100 Church Street
New York, New York 10007

ROBERT LEE, Det. (Shield No. 22882)

Via 6th Detective Squad
233 West 10th Street
New York, New York 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ZACHARY CROMWELL and RILEY CASSIDY,**VERIFIED COMPLAINT**

Plaintiffs,

Index No.

-against-

CITY OF NEW YORK and ROBERT LEE,

Defendants.
-----X

Plaintiffs, **Messrs. Zachary Cromwell and Riley Cassidy**, by and through the undersigned attorneys, **SIM & DEPAOLA LLP**, for their complaint against Defendants, **City of New York** and **Robert Lee**, allege and state, as follows:

1. This is a civil rights action, in which Plaintiffs seek relief and redress, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, for violations of their rights under the First, Fourth, Fifth, Sixth or Fourteenth Amendments, and laws of the City and State of New York.
2. The following claims arise from transactions or occurrences alleged to have transpired on August 27, 2019, at approximately 11:00 p.m., in the vicinity of 232 East 9th Street, New York, New York, in which defendants, acting under color of state law, caused Plaintiffs to be unlawfully stopped, questioned, searched, detained and arrested without reasonable suspicion or probable cause.
3. Defendants then caused criminal proceedings to be initiated and maintained in the absence of probable cause to believe Plaintiffs guilty or that such proceedings would succeed and engaged in the suppression of exculpatory facts or information and fabrication of evidence forwarded to prosecutors that was likely to influence a jury's decision.

4. Plaintiffs were therefore maliciously prosecuted and denied their rights to Fair Trial and Due Process of Law, until the criminal proceedings were terminated in favor of Plaintiffs on October 17, 2019, when all adverse charges were summarily and unconditionally dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

5. As a result, Plaintiffs were caused to sustain injuries, including the loss of liberty over the course of several days, substantial physical pain and suffering, as well as emotional and psychological distress, which are continuing and believed to be permanent.

6. At all times, defendants were acting under color of state law, to wit, under color of laws, statutes, ordinances, regulations, policies, customs or usages of the City or State of New York.

7. Plaintiffs timely served the City of New York, Office of the Comptroller, with notices of claim, pursuant to GML § 50-I.

8. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

9. Plaintiffs seek monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, plus all accrued interest, together with such other or further relief, as the Court may deem just and proper.

PARTIES

10. Plaintiff, **Mr. Riley Cassidy** ("Mr. Cassidy"), presently resides in Brooklyn, New York.

11. Plaintiff, **Mr. Zachary Cromwell** ("Mr. Cromwell"), resides in New York, New York.

12. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

13. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and

conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers as well as the individually named defendants herein.

14. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

15. Defendant, Robert Lee (“Lee”), at all times herein, was employed as a police officer or detective by the NYPD, under Tax Reg. No. 964112, and, as such, was acting as an agent or servant of Defendant City. Defendant Lee is being sued in his individual and official capacities.

16. At all times, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

17. On August 27, 2019, at approximately 11:00 p.m., Plaintiffs, Messrs., Cassidy and Cromwell, were lawfully walking in the vicinity of 232 East 9th Street, New York, New York.

18. Plaintiffs had not committed any crimes or violations of the law and had not been accused of such by any identified civilian witnesses.

19. At said time and place, defendants, including Lee, approached Plaintiffs in an overtly aggressive and threatening manner with their arms outstretched menacingly toward Plaintiffs.

20. Defendants, including Lee, then physically restrained Plaintiffs by violently contorting Plaintiffs’ arms behind their backs before affixing metal handcuffs to each of their wrists in an excessively tight fashion causing Plaintiffs to suffer substantial physical pain and discomfort.

21. Plaintiffs, Messrs. Cromwell and Cassidy, made several complaints that were ignored or denied regarding the painfully applied handcuffs to defendants, including Lee.

22. Defendants, including Lee, then unlawfully searched and removed Plaintiffs to the 9th Precinct, as defendants were without any reasonable suspicion or probable cause to believe that either Mr. Cassidy or Mr. Cromwell had committed any crime or violation of the law.

23. Defendants, including Lee, lacked any probable cause or reasonable suspicion to stop, seize or arrest Plaintiffs, because defendants never observed either Plaintiff commit any crime or violation of the law and were never informed of such.

24. Defendants, including Lee, then proceeded to illegally search Plaintiffs' persons and possessions by rifling through clothing and pulling out their pockets, despite the clear lack of any indicia of secreted contraband or unlawful activity.

25. As a result, Plaintiffs were involuntarily detained by defendants, including Lee, over the course of two (2) days, until their eventual release from custody on, or about, August 28, 2019.

26. Defendants, including Lee, falsely accused Plaintiffs of Disorderly Conduct or other related charges, despite no actual evidence to support this unfounded allegation.

27. Defendants, including Lee, fabricated fictitious events and occurrences, which were then falsely attributed to Plaintiffs, namely that Plaintiffs were observed to be engaging in fighting or in violent, tumultuous or threatening behavior with the intent public inconvenience, annoyance or alarm, when defendants knew such observations to be false and complete fabrications.

28. Plaintiffs assert that defendants, including Lee, falsely arrested, wrongfully detained and maliciously prosecuted them with the full knowledge that Plaintiffs had committed no crimes or violations of the law.

29. Plaintiffs, therefore, assert that due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, they were denied their rights to Fair Trial and Due Process and were maliciously prosecuted from the moment defendants, including Lee, unlawfully

stopped Plaintiffs, until the criminal proceedings were irrefutably terminated in favor of Plaintiffs on October 17, 2019, when all adverse charges were unconditionally and summarily dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

30. At all times relevant hereto, the defendants, including Lee, were involved in the decision to stop, seize, arrest and prosecute Plaintiffs without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

31. At all times relevant hereto, the defendants, including Lee, subjected Plaintiffs to excessive force, or failed to intervene when they observed others subjecting Plaintiffs to excessive force.

32. Plaintiffs assert that the aforementioned acts committed by defendants are representative of the pervasive policy, custom or pattern and practice of falsely arresting individuals for refusing to provide identification or recording the activities of police officers.

33. Defendants, including Lee, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations against Plaintiffs, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against Plaintiffs, despite the absence of any evidence to justify such conduct.

34. Defendants, including Lee, possessed no valid reason to approach, stop, question, search or arrest Plaintiffs, which gives rise to the strong inference that such conduct resulted from the unjust motivations or proclivities and an animus against young white males harbored by defendants, including Lee.

35. Defendants, including Lee, subjected Plaintiffs to disparate treatment compared to other individuals similarly situated, because defendants did not stop, accuse, seize or arrest any of the other multiple pedestrians, who were not young white adult males and who were engaged in

activity identical to the kind that resulted in Plaintiffs' illegal search and seizure, namely lawfully walking outside in the vicinity of 232 East 9th Street, New York, New York on August 27, 2019, at approximately 11:00 p.m.

36. Defendants, including Lee, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned nonexistent evidence the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to prosecutors.

37. Plaintiffs assert that the defendants, including Lee, who violated their civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and Defendant City that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

38. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, City and their respective policymakers and supervisors.

39. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD or City, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and

witnesses. Also detailed, is the obstinate refusal by the NYPD to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.

40. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from their own policies, rules and procedures, namely the incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

41. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

42. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

43. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

44. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

45. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of

marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

46. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

47. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

48. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

49. Upon information and belief, the NYPD, City, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs’ arrests without probable cause.

50. Upon information and belief, the NYPD, City, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

51. Defendants’ actions, pursuant to Plaintiffs’ underlying arrests, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs’ civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD or City.

52. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of the NYPD or City.

53. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

54. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City or NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD or City failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Lee.

55. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, which resulted no disciplinary or corrective action of any kind.

56. Upon information and belief, the NYPD or City have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

57. Defendants City of New York and Robert Lee acted to directly or proximately violate the civil rights of Plaintiffs, under the First, Fourth, Fifth, Sixth or Fourteenth Amendments, and the laws of the City and State of New York.

58. As direct or proximate results of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Unreasonable Searches and Seizures Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth.

60. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

61. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

62. Plaintiffs did not consent to said unreasonable searches or seizures.

63. The unreasonable searches and seizures were not otherwise privileged.

64. Accordingly, defendants violated Plaintiffs' rights, pursuant to Art. I § 12, of the New York constitution and Art. II § 8, of the New York Civil Rights Law.

65. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

SECOND CAUSE OF ACTION

Unreasonable Searches and Seizures Under
42 U.S.C. § 1983 *Against* Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth.

68. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

69. Plaintiffs were conscious and fully aware of said unreasonable searches and seizures.

70. Plaintiffs did not consent to said unreasonable searches and seizures.

71. The unreasonable searches and seizures were not otherwise privileged.

72. Accordingly, defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

73. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

74. The above paragraphs are here incorporated by reference as though fully set forth.

75. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.

76. Plaintiffs were conscious of their confinement.

77. Plaintiffs did not consent to their confinement.

78. Plaintiffs' arrest and false imprisonment was not otherwise privileged.

79. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
83. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
84. At all relevant times, defendants forcibly apprehended, arrested and imprisoned Plaintiffs.
85. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

86. The above paragraphs are here incorporated by reference as though fully set forth.
87. Defendants made Plaintiffs fear for their physical wellbeing and safety and placed them in apprehension of immediate harmful or offensive touching.
88. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent.
89. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
90. As a direct and proximate result of this breach, Plaintiffs sustained damages.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

91. The above paragraphs are here incorporated by reference as though fully set forth.

92. Defendants violated Plaintiffs' rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

93. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent.

94. As a direct and proximate result of this breach, Plaintiffs sustained damages.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

95. The above paragraphs are here incorporated by reference as though fully set forth.

96. Defendants initiated the prosecution against Plaintiffs.

97. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.

98. Defendants acted with malice, which may be inferred in the absence of probable cause.

99. The prosecutions were terminated in Plaintiffs' favor, when all adverse charges were unconditionally and summarily dismissed and sealed, upon consideration of the merits thereof.

100. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this breach, Plaintiffs sustained damages.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth.

103. Defendants initiated the prosecutions against Plaintiffs.

104. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.

105. Defendants acted with malice, which may be inferred in the absence of probable cause.
106. The prosecutions were terminated in Plaintiffs' favors, when all adverse charges were unconditionally and summarily dismissed and sealed, upon consideration of the merits thereof.
107. Accordingly, defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.
108. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

NINTH CAUSE OF ACTION
Denial of Right to Due Process Under
New York State Law

109. The above paragraphs are here incorporated by reference as though fully set forth herein.
110. Defendants fabricated false evidence to be used against Plaintiffs which was likely to influence a jury's decision.
111. Defendants forwarded false information to prosecutors.
112. Defendants deprived Plaintiffs of their liberty and freedom of movement after arraignment.
113. Accordingly, defendants violated Plaintiffs' rights under N.Y. Const. Art. I §§ 1, 2 and 6, and N.Y. Civil Rights Law Art. II § 12.
114. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
115. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

TENTH CAUSE OF ACTION
Denial of Rights to Fair Trial and Due Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

116. The above paragraphs are here incorporated by reference as though fully set forth.
117. Defendants fabricated false evidence to be used against Plaintiffs which was likely to influence a jury's decision.
118. Defendants forwarded false information to prosecutors.

119. Defendants caused deprivations to liberty and freedom of movement after arraignment.

120. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth or Fourteenth Amendments to Constitution of the United States.

121. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

ELEVENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

122. The above paragraphs are here incorporated by reference as though fully set forth herein.

123. Defendants committed acts or a series of acts that constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, whether or not such acts resulted in criminal charges, prosecution or conviction.

124. Accordingly, defendants committed a crime of violence against Plaintiff in violation § 10-403 of the Administrative Code of the City of New York.

125. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

TWELFTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

127. The above paragraphs are here incorporated by reference as though fully set forth herein.

128. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement actions against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

129. Accordingly, defendants violated Plaintiffs' rights, under N.Y.C. Admin. Code § 14-151.

130. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws Under
New York State law

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Defendants discriminated on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

134. Defendants selectively treated Plaintiffs relative to others similarly situated.

135. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

136. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

137. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

138. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

139. Accordingly, defendants violated Plaintiffs' rights, under N.Y. Const., Art. I § 11, N.Y Civil Rights Law, Art. VII § 79-N, and § 296 ¶ 13, of the New York Executive Law.

140. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 and 1983 *Against* Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth herein.
143. Defendants discriminated against Plaintiffs on the basis of race, color or ethnicity.
144. Defendants selectively treated Plaintiffs relative to others similarly situated.
145. Defendants' selective treatment of Plaintiffs were based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for exercising their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
146. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
147. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
148. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
149. Accordingly, defendants violated Plaintiffs' rights, under the Fourteenth Amendment.
150. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

151. The above paragraphs are here incorporated by reference as though fully set forth herein.
152. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
153. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

154. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

155. The above paragraphs are here incorporated by reference as though fully set forth herein.

156. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

157. Accordingly, defendants violated the Fourth, Fifth, and Fourteenth Amendments.

158. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

SEVENTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

159. The above paragraphs are here incorporated by reference as though fully set forth.

160. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

161. Defendant City breached those duties of care.

162. Defendant City placed defendants in a position where they could inflict foreseeable harm.

163. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

164. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

165. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

EIGHTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against* Defendant City

166. The above paragraphs are here incorporated by reference as though fully set forth.

167. Defendant City maintained a policy or custom that resulted in civil rights violations, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

168. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

169. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may encounter Defendant City’s employees.

170. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

171. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

172. Defendant City’s conduct caused violations to the Constitutional right of Plaintiffs.

173. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained damages.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- s) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action,
- t) Awarding Plaintiffs attorney's fees and costs, under 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action, plus all accrued interest.

JURY DEMAND

Plaintiffs hereby demand a trial by jury.

Dated: Bayside, New York
April 17, 2023

SIM & DEPAOLA LLP

Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiffs

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner of **SIM & DEPAOLA LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. This verification is made by me and not by Plaintiffs, because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 17, 2023

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.